

Thankfully, Jamison left the stop with his life. Too many others have not.²⁰

The Constitution says everyone is entitled to equal protection of the law – even at the hands of law enforcement. Over the decades, however, judges have invented a legal doctrine to protect law enforcement officers from having to face any consequences for wrongdoing. The doctrine is called “qualified immunity.” In real life it operates like absolute immunity.

In a recent qualified immunity case, the Fourth Circuit wrote:

Although we recognize that our police officers are often asked to make split-second decisions, we expect them to do so with respect for the dignity and worth of black lives.²¹

This Court agrees. Tragically, thousands have died at the hands of law enforcement over the years, and the death toll continues to rise.²² Countless more have suffered from other

²⁰ See, e.g., Mike Baker et al., *Three Words. 70 cases. The tragic History of ‘I Can’t Breathe.’*, N.Y. TIMES (June 29, 2020) (discussing the deaths of Eric Garner, George Floyd, and 68 other people killed while in law enforcement custody whose last words included the statement, “I can’t breathe.”).

²¹ *Estate of Jones v. City of Martinsburg, W. Virginia*, 961 F.3d 661, 673 (4th Cir. 2020), *as amended* (June 10, 2020).

²² Mark Berman et al., *Protests spread over police shootings. Police promised reforms. Every year, they still shoot and kill nearly 1,000 people.*, WASH. POST (June 8, 2020) (“Since 2015, police have shot and killed 5,400 people.”); see also Alicia Victoria Lozano, *Fatal Encounters: One man is tracking every officer-involved killing in the U.S.*, NBC NEWS (July 11, 2020), (“As of July 10, Fatal Encounters lists more than 28,400 deaths dating to Jan. 1, 2000. The entries include both headline-making cases and thousands of lesser-known deaths.”).

forms of abuse and misconduct by police.²³ Qualified immunity has served as a shield for these officers, protecting them from accountability.

This Court is required to apply the law as stated by the Supreme Court. Under that law, the officer who transformed a short traffic stop into an almost two-hour, life-altering ordeal is entitled to qualified immunity. The officer's motion seeking as much is therefore granted.

But let us not be fooled by legal jargon. Immunity is not exoneration. And the harm in this case to one man sheds light on the harm done to the nation by this manufactured doctrine.

As the Fourth Circuit concluded, "This has to stop."²⁴

I. Factual and Procedural Background²⁵

On July 29, 2013, Clarence Jamison was on his way home to Neeses, South Carolina after vacationing in Phoenix, Arizona. Jamison was driving on Interstate 20 in a 2001 Mercedes-Benz CLK-Class convertible. He had purchased the vehicle 13 days before from a car dealer in Pennsylvania.

²³ See, e.g., Jamie Kalven, *Invisible Institute Relaunches The Citizens Police Data Project*, THE INTERCEPT (Aug. 16, 2018) (discussing "a public database containing the disciplinary histories of Chicago police officers It includes more than 240,000 allegations of misconduct involving more than 22,000 Chicago police officers over a 50-year period."); Andrea J. Ritchie, *How some cops use the badge to commit sex crimes*, WASH. POST (Jan. 12., 2018) ("According to a 2010 Cato Institute review, sexual misconduct is the second-most-frequently reported form of police misconduct, after excessive force.").

²⁴ *Estate of Jones*, 961 F.3d at 673.

²⁵ The facts are drawn from the parties' depositions.

As Jamison drove through Pelahatchie, Mississippi, he passed Officer Nick McClendon, a white officer with the Richland Police Department, who was parked in a patrol car on the right shoulder.²⁶ Officer McClendon says he decided to stop Jamison because the temporary tag on his car was “folded over to where [he] couldn’t see it.” Officer McClendon pulled behind Jamison and flashed his blue lights. Jamison immediately pulled over to the right shoulder.²⁷

As Officer McClendon approached the passenger side of Jamison’s car, Jamison rolled down the passenger side window. Officer McClendon began to speak with Jamison when he reached the window. According to McClendon, he noticed that Jamison had recently purchased his car in Pennsylvania, and Jamison told him that he was traveling from “Vegas or Arizona.”

Officer McClendon asked Jamison for “his license, insurance, [and] the paperwork on the vehicle because it didn’t have a tag.” Jamison provided his bill of sale, insurance, and South Carolina driver’s license. Officer McClendon returned to his car to conduct a background check using the El Paso Intelligence Center (“EPIC”). The EPIC check came back clear immediately. Officer McLendon then contacted the National Criminal Information Center (“NCIC”) and asked the dispatcher to run a criminal history on Jamison as well as the VIN on his car.

²⁶ That night, Officer McClendon was working in Pelahatchie pursuant to an interlocal agreement between the Richland and Pelahatchie Police Departments.

²⁷ Jamison testified that there were two other officers on the scene. The record does not contain any evidence from these individuals.